

|            |                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|------------|----------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|            |                                              | <p>Court must take the necessary steps to ensure its orders are complied with.</p> <p>The Court intends to impose at least monetary sanctions against Plaintiffs and/or their counsel. Counsel should be prepared to address the appropriate amount of monetary sanctions and the appropriate type of additional sanctions.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>102</b> | Chan vs. Blueray Aquatics LLC, 2025-01524694 | <p><b>MOTION TO APPEAR PRO HAC VICE – DENIED WITHOUT PREJUDICE</b></p> <p>The unopposed application of attorney David A. DuBois to appear pro hac vice on behalf of Defendant Blueray Aquatics, LLC is <b>DENIED WITHOUT PREJUDICE</b>.</p> <p>Moving Attorney met the requirements of California Rules of Court, rule 9.40 except that Moving Attorney did not: (1) state his residence pursuant to rule 9.40(d)(1), (2) establish proper service on the state Bar of California pursuant to rule 9.40(c)(1), and (3) state that he is not “[r]egularly engaged in substantial business, professional, or other activities in the State of California” pursuant to 9.40(a)(1), (a)(2), and (a)(3).</p> <p>The Court notes that Counsel need not provide his exact resident address but he must identify the state of his legal residence.</p> <p>Moving attorney to give notice.</p> |
| <b>103</b> | Danze vs. Danze, 2025-01522118               | <p><b>DEMURRERS - SUSTAINED</b></p> <p>Defendants Marcelo Danze, Manuel Soto, and Alex Danze each filed a demurrer to the complaint filed by Plaintiff Kristina Danze. Each moving defendant demurs to all causes of action alleged against him. Plaintiff did not file opposition to any demurrer.</p> <p>The complaint contains six causes of action: (1) breach of fiduciary duty against Defendant Marcelo, (2) fraudulent misrepresentation against all moving Defendants, (3) unjust enrichment against all moving Defendants, (4) fraudulent misrepresentation against Defendant Marcelo, (5) an accounting against all moving</p>                                                                                                                                                                                                                                             |

|     |                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|-----|--------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                                      | <p>Defendants, and (6) conspiracy against all moving Defendants. (ROA 2.)</p> <p>Plaintiff Kristina Danze did not oppose any of the three demurrers.</p> <p>Based on Plaintiff's non-opposition, the Court may "deem plaintiff[] to have abandoned the issues" or "claims" addressed in the Demurrers. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Defendants' arguments presented in the Demurrers. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue."]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot."].)</p> <p>The Demurrers will be SUSTAINED. As of this date, Plaintiff has not made any attempt to explain whether and how the complaint can be amended. The Court will determine whether to sustain the demurrers with or without leave to amend based on Plaintiff's response.</p> <p>Defendants to give notice.</p> |
| 104 | Douraghi vs. Douraghi, 2020-01137161 | <p>MOTION TO BE RELIEVED AS COUNSEL – GRANTED</p> <p>Underwood Law Firm, P.C. moves to be relieved as counsel of record for Plaintiffs Iraj Douraghi and Abdol Amir Douraghi. The attorneys identified in the caption for Underwood Law Firm, P.C. are Elijah Underwood and Abel Edens (collectively, "Moving Counsel"). The unopposed Motion is GRANTED, as follows.</p> <p>Moving Counsel has utilized the Judicial Council Forms (MC-051, MC-052, and MC-053), and has satisfied the</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |